



CHAPTER 5.

An Act to enable railway undertakers under the control of the Minister of Transport to make agreements with him and with one another providing for financial matters arising out of, and in connection with, such control; and for purposes connected therewith.

[19th December 1940.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) The Minister of Transport may by order confer on railway companies, being companies of the whole or part of whose undertaking he has taken control under emergency powers, all such powers as appear to him to be necessary or expedient for the purpose of enabling those companies, notwithstanding any statutory limitation, to enter into and to carry out any agreement with him or with one another providing for financial matters arising out of or in connection with such control.

Power to enter into and carry out agreements.

(2) Any such order may make provision—

(a) for the suspension of the pooling scheme established under section thirty-one of the London Passenger Transport Act, 1933; and

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(b) for the alteration of the definition of the expression "year" in subsection (2) of section one hundred and seven of that Act;

and may make such amendments of that Act and of any other enactment or instrument as appear to the said Minister to be incidental to or consequential on the said suspension or alteration.

(3) Any order made under this section may provide that any provision thereof shall have effect as from such date, whether

before or after the commencement of this Act, as may be specified therein.

(4) Every order made under this section shall be laid before Parliament as soon as may be after it is made, and if either House, within the period of forty days beginning with the day on which any such order is laid before it, resolves that the order shall be annulled, the order shall thenceforth become void but without prejudice to the validity of anything previously done thereunder or to the making of a new order.

In reckoning any such period of forty days, no account shall be taken of any time during which Parliament is dissolved or prorogued or during which both Houses are adjourned for more than four days.

(5) In this section the expression "railway companies" includes any bodies of persons carrying on a railway undertaking, and the expression "emergency powers" means powers conferred by Regulations made under the Emergency Powers (Defence) Acts, 1939 and 1940.

Short title.

2. This Act may be cited as the Railways Agreement (Powers) Act, 1940.

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